

the substance of the motion, which does not present a large number of requests, complex factual or legal issues, or extensive pleadings, the Court finds the time expended by counsel to prepare the instant motion is excessive. Moreover, the Court finds Ms. Tsai hourly rate is not supported by other known existing attorney hourly rates in this county or information contained in a declaration related to her training, experience and work associated with the instant matter.

Under the totality of the circumstances present here, including the Court's experience with addressing attorney's fee requests, the Court finds 1.5 hours of time for attorney Tsai at a reasonable hourly rate of \$350.00, plus the filing fee of \$60.00, constitutes the reasonable amount of attorney's fees and costs incurred by Plaintiff. Thus, the Court awards Plaintiff sanctions in the amount of \$585.00 payable by Defendants jointly and severally no later than ten (10) days from service of notice of entry of this order.

2. CL0003941 Wells Fargo Bank, N.A. vs. Kathleen Sivel, an individual

No appearances required. In light of the proof of service of the Summons and Complaint filed on June 5, 2026 and on the Court's own motion, the OSC re Dismissal is dismissed.

3. CL0003949 CREDITORS ADJUSTMENT BUREAU, INC., vs. ISRAEL GARCIA TAPIA

No appearances required. On the Court's own motion and in light of the Declaration filed by counsel for Plaintiff, the Court continues the OSC re Dismissal to October 12, 2026 at 1:30 p.m. in Dept. A. Plaintiff shall file a proof of service, an application to serve by publication (if deemed appropriate), or a request for dismissal of defendant in advance of the continued order to show cause date. The Court notes, the declaration of non-service filed on July 1, 2026 fails to set forth ongoing reasonable efforts in and by itself; however, the declaration of counsel evidences Plaintiff is and has been making diligent efforts to effectuate service of process.

4. CL0003950 Midland Credit Management Inc. vs. Casey R Timms

No appearances required. On the Court's own motion and in light of the proof of service of the Summons and Complaint filed on June 12, 2026, the OSC re Dismissal is dismissed.

5. CU0001529 NATIONAL COLLEGIATE STUDENT LOAN TRUST 2005-2, a Delaware Statutory Trust(s) vs. SANDE KAY

The Court, on its own motion and pursuant to good cause under California Rules of Court, Rule 3.185(c)(2), vacates the notice of settlement and places the case back on the active calendar.

Plaintiff's motion to vacate the notice of settlement and place the case back on active calendar pursuant to Code of Civil Procedure § 473(b) is denied as moot.

Discussion

Plaintiff moved for relief under Code of Civil Procedure § 473(b). However, such relief is not warranted in the present circumstances. Pursuant to such, the "court may, upon any terms as

may be just, relieve a party or the party's legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect." Code Civ. Proc. § 473(b).

At bar, there is no "judgment, dismissal, order, or other proceeding taken against the party." Plaintiff filed a notice of conditional settlement ("NOS") on August 8, 2025, stating the "settlement agreement conditions dismissal of this matter on the satisfactory completion of specified terms that are not to be performed within 45 days of the date of the settlement" and that a request for dismissal will be filed no later than April 5, 2033. Lo Decl., Ex. 1. The moving papers first state Plaintiff and Defendant came to an agreement on a settlement amount on August 8, 2025 with the first payment being due on September 5, 2025, and Defendant defaulted in payment having not made any payment to Plaintiff since August 8, 2025. Mot., 2:1-4. The motion then states "Plaintiff could not have anticipated Defendant's immediate default of the settlement." Mot., 2:20-21. The motion then reveals, "Defendant was not in agreement with all terms and did not sign." Mot., 2:24-25. Thus, it appears there was never a signed settlement agreement in the first place.

Additionally, even if there were a "judgment, dismissal, order, or other proceeding" to vacate, section 473(b) requires application for relief "shall be made within a reasonable time, in no case exceeding six months...." Code Civ. Proc. § 473(b). At bar, the NOS was filed on August 8, 2025. Plaintiff's motion states, "On 11/17/2025 opposing counsel informed me he was relieved as counsel, where Plaintiff waited to receive defendants [sic] substitution of attorney." Mot., 2:25-26. However, the record reflects Defendant's Substitution of Attorney was filed and served on Plaintiff on November 14, 2025. Plaintiff does not include any explanation as to why she waited over eight (8) more months to file the present motion.

While relief under Code of Civil Procedure § 473(b) would be inappropriate for the reasons set forth above, Rule 3.185 allows the court to restore the case to the civil active list. *Irvine v. Regents of University of California* (2007) 149 Cal.App.4th 994, 1001. "By alleging a dispute over whether the parties reached a binding settlement, plaintiff demonstrated good cause to restore to the civil active list." *Id.* at 1001-1002. "In reaching this conclusion," the court does not consider "whether any of plaintiff's contentions have merit." *Id.* at 1002.

6. CU0002314 Craig Dealon Dowell vs. Jose Valentin Galaz Romero et al
CU0002605 Maria Cota, an individual et al vs. State of California, a public entity
et al

Defendants' Jose Romero and State of California Department of Transportation ("Caltrans") unopposed motion to consolidate for all purposes is GRANTED.

Code of Civil Procedure § 1048 grants discretion to the trial court to consolidate actions involving common questions of law or fact. A consolidation of actions does not affect the rights of the parties. The purpose of consolidation is to avoid unnecessary costs or delay, avoid duplication of procedure, particularly in the proof of issues common to both actions, and avoid inconsistent results by hearing and deciding common issues together. See *Estate of Baker* (1982) 131 Cal.App.3d 471, 485. Each case presents its own facts and circumstances, but the court generally considers the following: (1) timeliness of the motion: i.e., whether granting